

25PSCV03534 25PSCV03534

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-07

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Case Number: 25PSCV03534 Hearing Date: July 7, 2026 Dept: H

Citibank, N.A. v. MJCH Logistics,
et al., Case No. 25PSCV03534

ORDER ON

MOTIONS TO BE RELIEVED AS COUNSEL

1. The hearing on Counsel for Defendant MJCH Logistics' (i.e., Law Offices of Michael A. Peart) Motion to be Relieved as Counsel is CONTINUED to July 31, 2026, at 9:00 a.m. [see below].

2. The hearing on Counsel for Defendant Mary Hui's (i.e., Law Offices of Michael A. Peart) Motion to be Relieved as Counsel is CONTINUED to July 31, 2026, at 9:00 a.m. [see below].

Background

Plaintiff Citibank, N.A. ("Plaintiff") alleges as follows: On July 7, 2021, MJCH Logistics ("MJCH") executed and delivered to Plaintiff a Commercial Credit Application/Agreement wherein MJCH requested a business credit account from Plaintiff in the amount of \$100,000.00; this request was approved by Plaintiff on August 3, 2021. Mary Hui ("Hui") executed a personal guaranty in connection with the above. On May 4, 2025, MJCH failed to make payments due and owing.

On

September 30, 2025, Plaintiff filed a complaint, asserting causes of action against MJCH, Hui and Does 1-100 for: (1) Breach of Written Agreement, (2) Breach of Personal Guaranty, (3) Money Lent, and (4) Account Stated.

On

December 10, 2025, MJCH and Hui's defaults were entered.

On

June 9, 2026, the Court granted MJCH and Hui's Motion to Set Aside Default.

A

Case Management Conference is set for September 24, 2026.

Discussion

The Law Offices of Michael A. Peart seeks to be relieved as counsel of record for MJCH and Hui.

The

Court continues the hearing on the above motions, to July 31, 2026, at 9:00 a.m. Motion #1 was filed (and electronically served) on June 12, 2026; Motion #2 was filed (and electronically served) on June 16, 2026.

Both

motions reflect insufficient Code of Civil Procedure sections 1005, subdivision (b) and 1010.6, subdivision (a)(3)(B) notice (i.e., 16 court days, plus an additional 2 court days for electronic service). June 19, 2026 and July 3, 2026 are court holidays and are thus excluded for purposes of calculating notice. The motions should have been filed no later than June 11, 2026 and electronically served no later than June 9, 2026.

Moving

counsel is to provide notice of the continued hearing date in compliance with California Rules of Court rule 3.1362 and is to file a proof of service regarding same no later than 5 court days prior to the continued hearing date.